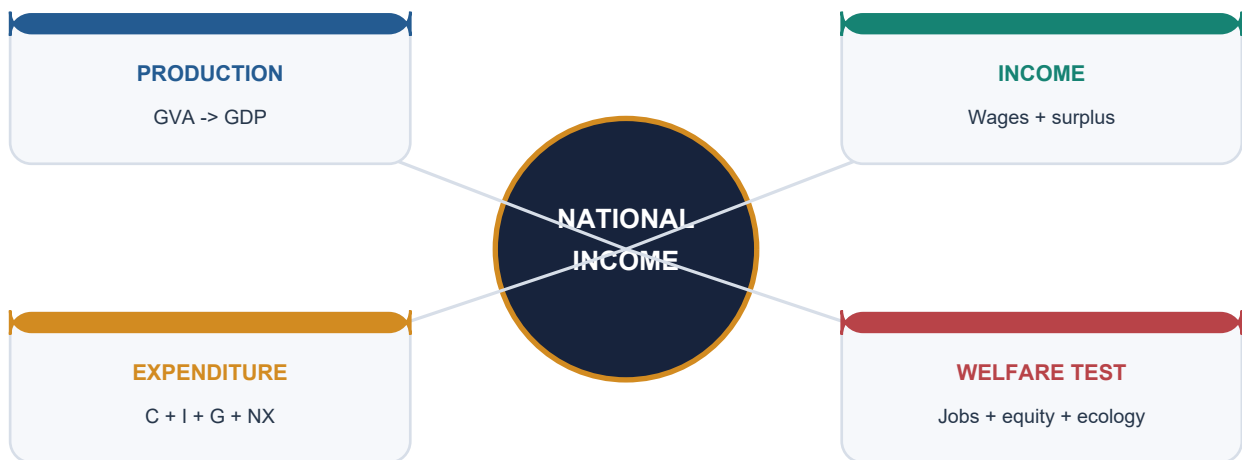


Special Provisions Relating to Certain Classes - CORE / EXAM-COMPLETE

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Deterministic fallback visual: national income viewed through production, income, expenditure and welfare lenses.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Special Provisions Relating to Certain Classes - CORE / EXAM-COMPLETE

Subject: Polity · **Tier:** Core · **GS Paper:** GS-II **Official clauses:** "Rights Issues" and "Appointment to various Constitutional posts, powers, functions and responsibilities of various Constitutional Bodies." **Grounded in:** Constitution of India, Part XVI, Arts 330-342A; M. Laxmikanth, *Courseware on Indian Polity*, Eighth Edition (2026), Ch. 77. **Status legend:** FACT: constitutional/textual fact · ☐ statute/rule · ☐ ☐ judicial holding · ☐ non-binding recommendation · **ANALYSIS:** analytical inference. **Rule:** This owner supplies the consolidated map. Specialist owners retain detailed reservation doctrine and commission design. It is independently sufficient for Prelims and 10/15/20-mark Mains; no Advanced companion is required.

1. Core proposition

Part XVI combines four different constitutional techniques:

REPRESENTATION	SERVICES	SAFEGUARDS	IDENTIFICATION
Arts 330-334	Art 335	Arts 338-340	Arts 341-342A
reserved seats	claims + efficiency	commissions/reports	constitutional lists

ANALYSIS: They pursue substantive equality and political inclusion, but they do not operate in the same way. A reserved seat, a service claim, a commission's recommendation and a Presidential list are legally distinct.

2. Master Article map

Provision	Subject	Status/trap
330	SC/ST reservation in Lok Sabha	Population-linked constitutional reservation
330A	Women's reservation in Lok Sabha, including within SC/ST seats	FACT: In constitutional text; current operation/status is controlled in Parliament .md
331	Anglo-Indian nomination to Lok Sabha	Text remains, but Art 334's nomination period was not extended beyond seventy years
332	SC/ST reservation in State Assemblies	Population-linked, with special Assam/NE provisions
332A	Women's reservation in State Assemblies	Route live status to Parliament .md
333	Anglo-Indian nomination to State Assemblies	Same Art 334 expiry distinction
334	Time limit for SC/ST seat reservation and Anglo-Indian nomination	104th Amendment extended SC/ST reservation to eighty years; did not extend nomination
334A	Commencement/duration/rotation framework for women's reservation	Commenced ≠ operational ; use the dated controls in Parliament .md
335	SC/ST claims in services/posts, consistently with administrative efficiency	Not a self-executing quota
336-337	Transitional Anglo-Indian services and educational-grant protections	Historical; ended after ten years
338	NCSC	Constitutional commission; Art 338(10) retains an Anglo-Indian reference
338A	NCST	Constitutional commission
338B	NCBC	Constitutional since 102nd Amendment
339	Union control/commission concerning Scheduled Areas and ST welfare	Distinct from Fifth/Sixth Schedule institutions
340	Commission to investigate backward-class conditions	Source of Kalelkar/Mandal commissions
341	Scheduled Castes	President specifies; Parliament alone includes/excludes
342	Scheduled Tribes	Same list architecture
342A	Socially and educationally backward classes	Central List plus State/UT lists after 105th Amendment

3. Legislative representation

3.1 SC/ST seats

FACT: Articles 330 and 332 reserve seats in the Lok Sabha and State Legislative Assemblies broadly in proportion to the relevant SC/ST population. Reservation identifies constituencies/seats; it does not create a separate electorate-voters in the constituency vote in the ordinary territorial election.

FACT: Article 334 now provides an **eighty-year** period from commencement for SC/ST legislative-seat reservation. The 104th Amendment made this extension while leaving the Anglo-Indian nomination period at seventy years.

3.2 Anglo-Indian nomination

FACT: Articles 331 and 333 remain printed in the constitutional text, but the special nomination period under Article 334 was not extended beyond seventy years and ceased in 2020.

Trap: "Article omitted" and "provision ceased to operate through the time clause" are not the same statement.

3.3 Women's reservation cross-route

FACT: Arts 330A, 332A and 334A are part of Part XVI. They are not a "certain class" list mechanism like Arts 341/342. The 106th Amendment placed the provisions in the Constitution, but Art 334A links their operation to a delimitation exercise undertaken after publication of the relevant figures of the first census taken after commencement of the amendment. Rotation is tied to subsequent delimitation as Parliament provides. Therefore **constitutional insertion is not the same as present electoral operation**. The dated census/delimitation position must be rechecked in Parliament.md.

4. Services and posts: Article 335

FACT: SC/ST claims must be considered in public appointments consistently with the maintenance of administrative efficiency. The 82nd Amendment inserted a proviso allowing provisions for relaxation of qualifying marks or lowering evaluation standards for reservation in promotion.

Correct proposition	Incorrect shortcut
Art 335 supplies an efficiency consideration and relaxation authority	"Art 335 itself grants a fixed percentage quota"
It concerns SC/ST claims in Union/State services	"It is the source of all reservation, including OBC/EWS"
It works with Arts 16(4A)/(4B) and case law	"Efficiency automatically defeats reservation"

☐ Detailed promotion, data, creamy-layer and efficiency doctrine belongs in Fundamental-Rights.md.

5. Constitutional commission architecture

Body	Article	Shared core	Specialist route
NCSC	338	Chair + Vice-Chair + 3 members; President appoints; safeguards, complaints, planning advice, reports, civil-court inquiry powers	National-Commissions-SC-ST-BC.md
NCST	338A	Same broad architecture plus tribal-specific mandate	Same
NCBC	338B	Constitutional SEBC commission since 102nd Amendment	Same

FACT: Their reports go to the President and Parliament with action-taken/non-acceptance explanations; State-related material routes through the Governor to the State legislature.

Trap: Civil-court powers during investigation do not make recommendations binding or convert the commissions into courts.

Article 339

FACT: The President may appoint a commission on Scheduled Areas administration and ST welfare and had to do so after ten years from commencement. Union executive power also extends to directions to a State concerning schemes essential for ST welfare.

ANALYSIS: Article 339 is a Union-supervision mechanism. Fifth/Sixth Schedule institutions and PESA/FRA detail belong in Scheduled-and-Tribal-Areas.md.

Article 275 welfare-grant cross-link

FACT: Article 275(1), outside Part XVI, authorises grants-in-aid to States in need and contains a specific route for schemes promoting Scheduled Tribe welfare and raising the administration of Scheduled Areas. It is a fiscal support provision, not a power to alter an Art 342 list or replace the Fifth/Sixth Schedules.

Article 340

FACT: The President may appoint a commission to investigate SEBC conditions and recommend measures and grants; its report and an action memorandum are laid before Parliament. The Kalelkar and Mandal Commissions are the standard examples.

Trap: An Article 340 commission is temporary/investigative; the NCBC under Art 338B is the standing constitutional commission.

6. Identification of beneficiary classes

6.1 Scheduled Castes and Scheduled Tribes

Stage	Arts 341/342 rule
Initial specification	President, by public notification; consultation with Governor where a State is concerned
Inclusion/exclusion	Parliament by law
State power	A State cannot independently alter the Presidential SC/ST list
Territorial character	Lists are State/UT-specific; status is not automatically identical across India

□□ *State of Punjab v. Davinder Singh* (2024) permits evidence-based sub-classification within the Scheduled Castes for distribution of benefits, but does not transfer Article 341 list-alteration power to a State or require sub-classification.

6.3 List, benefit and sub-classification case matrix

Decision	Decision year	Safe proposition
<i>Indra Sawhney v. Union of India</i>	1992	Backward-class reservation doctrine, creamy layer and the ordinary 50% framework arise under equality provisions, not Part XVI list alteration
<i>E.V. Chinnaiah v. State of Andhra Pradesh</i>	2004	Earlier decision treated notified SCs as an indivisible class for sub-classification
<i>M. Nagaraj v. Union of India</i>	2006	Promotion-reservation enabling provisions were upheld subject to constitutional conditions
<i>Jarnail Singh v. Lachhmi Narain Gupta</i>	2018	Modified the <i>Nagaraj</i> data rule and applied creamy-layer exclusion logic in the promotion context
<i>Jaishri Laxmanrao Patil v. Chief Minister, Maharashtra</i>	2021	Interpreted the 102nd Amendment before the 105th Amendment restored express State/UT list competence
<i>State of Punjab v. Davinder Singh</i>	2024	Overruled <i>E.V. Chinnaiah</i> on this point and permitted evidence-based SC sub-classification for fair distribution of benefits

Davinder firewall: A State may sub-classify for distribution on a constitutionally defensible evidentiary basis; it may not add to or delete from the Presidential SC list. The decision does not command every State to sub-classify or authorise exclusion that destroys the protected class.

6.2 Socially and educationally backward classes

FACT: The 102nd Amendment inserted Arts 338B and 342A. After the 105th Amendment:

- **Central List:** President specifies for Central-Government purposes; Parliament includes or excludes.
- **State/UT List:** each State/UT may **by law** prepare and maintain its own list for its own purposes; entries may differ from the Central List.

Master trap: "Which community is on a constitutional list?" and "What reservation/benefit does it receive?" are separate questions. A list identifies a class; the benefit requires its own constitutional, statutory or policy authority.

7. Protective, developmental, permanent and transitional provisions

Axis	Examples
Protective	Commission inquiries, service safeguards, Union directions
Developmental	Planning advice, Article 340 recommendations, welfare measures
Continuing	Arts 335, 338-342A
Time-bound/transitional	Arts 334, 336 and 337

ANALYSIS: This classification is analytical; the Constitution does not label every Article with these categories.

8. Local-body reservation and owner-scope firewall

FACT: Articles 243D and 243T separately govern reservation in Panchayats and Municipalities, including SC/ST seats and offices and women's reservation. They are cross-references, not Part XVI legislative-seat provisions.

Question asked	Correct owner
Who is constitutionally specified as SC/ST/SEBC?	Arts 341, 342 and 342A
What is the parliamentary/assembly representation architecture?	Arts 330-334A
What is the local-body reservation architecture?	Arts 243D and 243T
What reservation is available in education/employment?	Arts 15-16, law/policy and controlling case law
How are Scheduled Areas administered?	Fifth/Sixth Schedules, PESA and specialist owner
What welfare scheme applies?	The exact statute, rule, budget or scheme-not constitutional-list status alone

Master distinction: A constitutional list identifies a class; a reservation provision authorises a representational benefit; a welfare scheme supplies a dated programme; and area administration allocates territorial governance. None is a synonym for the others.

9. Answer architecture (10/15/20-mark support)

9.1 Demand map

Demand	Answer spine
Part XVI overview	Representation -> services -> commissions -> lists -> equality verdict
SC/ST list versus sub-classification	Arts 341/342 -> Parliament's list power -> <i>Davinder Singh</i> distribution distinction
Backward-class architecture	Art 340 -> NCBC/338B -> 102nd -> 105th -> Central/State lists
Commission effectiveness	Constitutional design -> civil-court powers/report route -> advisory limit
Reservation and efficiency	Art 335 -> Art 16 route -> case-law discipline -> substantive-equality verdict

9.2 Thesis options

- *Part XVI is not a single reservation code; it combines political representation, service claims, constitutional monitoring and list identification through legally distinct mechanisms.*
- *The constitutional lists answer who belongs to a protected class, while Articles 15, 16, 330, 332 and ordinary law answer what benefit follows.*
- *The 102nd-105th Amendment sequence constitutionalised the NCBC while restoring a federal division between the Central SEBC List and State lists.*

9.3 Mark-scaled structures

Marks	Structure	Evidence
10	Define issue -> 3-4 Articles -> one distinction -> verdict	3-4 anchors
15	Representation/services/commission/list map -> amendment/case -> limit -> verdict	5-6 anchors
20	Part XVI architecture -> equality rationale -> SC/ST/SEBC mechanisms -> federal/implementation critique -> graded conclusion	7-9 anchors

9.4 Evidence units

- **Claim:** list power is constitutionally centralised for SC/STs. **Evidence:** FACT: Arts 341/342.

Analysis: uniform legal alteration through Parliament protects list integrity. **Qualification:** ☐☐ States may design evidence-based distribution within a list under *Davinder Singh* without changing it.

- **Claim:** Article 335 balances representation and administration. **Evidence:** FACT: text plus 82nd

Amendment proviso. **Analysis:** efficiency is integrated into, not placed above, substantive equality. **Qualification:** exact promotion conditions arise from Arts 16 and case law.

- **Claim:** commission status does not equal binding power. **Evidence:** FACT: Arts 338-338B reporting and inquiry design. **Analysis:** leverage is parliamentary visibility and consultation. **Qualification:** governments retain final policy authority subject to review.

10. Must-Know Facts

- FACT: Part XVI runs from Arts **330-342A** and now also contains 330A, 332A and 334A.
- FACT: SC/ST seat reservation and Anglo-Indian nomination have different Article 334 time positions.
- FACT: Art 335 is a service-claim/efficiency provision, not a universal reservation clause.
- FACT: NCSC/NCST/NCBC are constitutional; Article 340 commissions are separately appointed.
- FACT: President specifies SC/ST lists; Parliament alone includes/excludes.
- FACT: After the 105th Amendment, Central and State/UT SEBC lists are distinct.
- FACT: Arts 336-337 are exhausted transitional provisions.
- FACT: Arts 243D/243T and Art 275 are cross-links, not substitutes for Part XVI.
- ☐☐ *Davinder Singh* (2024) distinguishes benefit distribution through sub-classification from alteration of the Art 341 list.

11. UPSC traps and source discipline

- Do not equate SC/ST legislative reservation with separate electorates.
- Do not say States can add a caste/tribe to Arts 341/342 lists by executive order.
- Do not say the 105th Amendment abolished the Central SEBC List.
- Do not present a commission's civil-court powers as binding adjudication.
- Do not calculate or simplify women's-reservation dates here; route to Parliament .md.
- Do not treat Articles 336-337 as current benefits.
- Keep FACT: constitutional text, ☐ implementing law, ☐☐ case holding, ☐ recommendation and ANALYSIS: inference separate.

Cross-links

- Reservation/equality cases: Fundamental-Rights.md
- Commission detail: National-Commissions-SC-ST-BC.md
- Scheduled/tribal administration: Scheduled-and-Tribal-Areas.md
- Women's reservation and delimitation status: Parliament.md
- Election administration: Election-Commission.md